

GZ: 2025-0.021.375 dated February 4, 2025 (Case Number: DSB-D124.1328/24)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical data, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The

Data Protection Authority

decides

on

the

data protection complaint

of

Sigrid A***

(complainant) dated May 12, 2024 against Gregor N*** (respondent) regarding the violation of the right to confidentiality as follows:

1. The complaint is dismissed regarding the camera in the garden.
 2. The complaint is upheld regarding the cameras in the living room and the anteroom, and it is determined that the respondent has violated the complainant's right to confidentiality through the processing of personal data by means of cameras.
 3. The respondent is ordered to restrict the processing of images and sound from the cameras in the living room and the anteroom within a period of 2 weeks, under penalty of enforcement, such that no recordings are made during the care service, or the cameras are deactivated during the care service.
- Legal bases: Art. 5, 6, 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1, 18 para. 1, and 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended.

REASONING

A. Submissions of the parties and procedural history

1. In her initial submission dated May 12, 2024, the complainant states that she has been violated in her right to confidentiality by the respondent and seeks a determination of the legal violation. The complainant claims that on March 12, 2024, while working as a home helper for a client, Mr. J***, she was filmed by cameras installed by the respondent, the legal representative of Mr. J***. On May 12, 2024, the respondent showed the complainant a video recording from March 12, 2024, which depicted the complainant during her work as a home helper for the client, Mr. J***. The cameras had been installed there for several months, and the respondent had repeatedly assured the complainant's employer that they were merely decoys. The complainant and her colleagues had refused their consent and approval from the outset.
2. In his response dated June 11, 2024, the respondent explains that he installed three cameras. Originally, there were four cameras. On January 10, 2024, suspicious footprints were visible in the snow in Mr. J***'s garden, which extended from the locked garden gate to the bedroom window and from the bedroom window to the terrace. The respondent then went to the police in L***stadt and asked what he could do, as Mr. J*** was afraid. The police advised him to set up wildlife cameras. He then informed the police that money was repeatedly going missing, but they could not help with that. The respondent inquired about the court's office hours and then discussed his concerns with a judge. The judge advised the respondent to install cameras. When the respondent mentioned that a care service was coming to Mr. J***, the judge said that the cameras needed to be covered while the care service was performing their work, and once the care service was finished, the cameras should be uncovered again. This occurred on February 5, 2024, at approximately 9:50 AM. The respondent then informed the station manager of the G*** assistance organization, Ms. E***, that he wanted to install cameras and would notify her when they were being mounted. On February 13,

2024, he called Ms. E*** to inform her that he would be installing the cameras over the weekend and that she should tell the staff that the cameras needed to be covered and that once they were finished with their care service, the ladies should uncover the cameras again.

Since Mr. J*** is unfortunately demented and has fallen several times, and he had to be taken to the hospital by ambulance after accidentally igniting tissues in a metal bucket and causing smoke, and since he had thrown a burning cigarette into a trash can in the living room, this was deemed necessary. The complainant mentioned to the respondent that Mr. J*** allegedly always hits the display case with his keychain, which is not true; the respondent has never seen that.

The cameras only record movements for 20 seconds to a minute. After three days, the recordings are automatically deleted. Unfortunately, there is no shorter setting. The cameras are not marked. One is hanging in the anteroom with the lens facing the entrance door. The second camera is in the living room on a wall shelf and can be rotated 360 degrees. The third camera is hanging on a wooden post and shows the garden and the terrace. The

****Applicant's Statement****

The applicant installed the cameras solely because of Mr. J***, as she was very concerned for him, and she never intended to publish these images. The cameras are from the brand Video***. They are indoor and outdoor cameras with a two-way system.

On March 12, 2024, the applicant had Mr. J*** sign something. She said, "Peterle, I have something from the boss for you to sign." Although the G*** aid organization was aware that Mr. J*** was no longer allowed to sign anything since November 16, 2022. The respondent only noticed through the recording, which lasted only 20 seconds, that Mr. J*** had signed something every month. On March 13, 2024, the respondent asked the applicant if she had Mr. J*** sign something, and she denied it. Since the respondent also had his own appointments, he let it go once.

Attached to the submission were photographs showing the cameras, their positions, and their respective fields of view.

3. On June 24, 2024, the final report from the investigations by the Public Prosecutor's Office H***stadt, dated June 14, 2024, was received by the Data Protection Authority. The Public Prosecutor's Office was investigating, on one hand, the applicant's complaint against the respondent for sexual harassment and, on the other hand, the respondent's complaint against the applicant for defamation.

4. On December 5, 2024, the Data Protection Authority conducted hearings with the respondent and the applicant.

5. In her statement dated December 6, 2024, the applicant explained that the G*** aid organization regularly sends out emails for updates or information to the employees.

Attached to the submission were emails sent by superiors, including Ms. E***, to the employees of the G*** aid organization.

6. In his statement dated December 16, 2024, the respondent stated that he never told the G*** aid organization that the cameras were dummies. He only said that the cameras looked like dummies. Otherwise, he would not have said that the caregivers should cover the cameras when they came to Mr. J***. There were never any dummies. The cameras are necessary because Mr. J*** suffers from anxiety. In such a case, the respondent must quickly go to him and calm him down. The video and audio recordings are stored for three days and then automatically deleted. The respondent has been Mr. J***'s legal representative since January 2023. Contrary to the applicant's claims in her submission and during the hearing on December 5, 2024, he has never sexually harassed or insulted her. Mr. J*** is his stepfather, which is why he is often with him. He also took care of both of them during his mother's lifetime. He had discussions with Mr. J*** about the nursing home, as he was afraid of it. Meanwhile, he is waiting for a place in the nursing home for Mr. J***. Furthermore, the respondent reiterates what has been previously stated.

Attached to the submission was the document appointing the respondent as the legal representative of Mr. J*** dated January 16, 2023, and the correction order dated November 18, 2022.

7. In her statement dated December 20, 2024, the applicant explained that the respondent installed the cameras in February 2024, but there was no consent. Her supervisor, Michaela E***, assured her

several times that the cameras—although they blinked—were dummies, that they recorded neither images nor sound, and that only the camera in the garden was active.

8. On January 13, 2025, the Data Protection Authority conducted the hearing of the witness Michaela E***.

9. In her statement dated January 10, 2024, the applicant stated that she no longer knew exactly what the document was that she had Mr. J*** sign in the video recording. She had received the order from her boss to have it signed. She does not know what happened to it afterward. It was decided that no care should take place during the respondent's presence. Furthermore, the applicant reiterated what has been previously stated.

10. In his statement dated January 19, 2025, the respondent stated that he called Ms. E*** to tell her about the cameras, and that was not during the care visit. He had said from the beginning that they were not dummies, and regarding the covering, he had also said from the start that they should do it. Furthermore, the respondent reiterates what has been previously stated.

****B. Subject of the Complaint****

Based on the initial submission, the subject of the complaint is the question of whether the respondent violated the applicant's right to confidentiality by installing video cameras at her workplace.

C. Findings of Facts

1.

The
complainant
works
as
a home care assistant
for
the
Lower Austrian

G*** relief organization. In the course of this work, she also cared for Mr. J***, whose adult representative is the respondent.

Assessment of Evidence: The findings made are based on the consistent statements of the complainant and the respondent, as well as the hearing of the complainant on December 5, 2024, and the hearing of the respondent on December 5, 2024.

2. Due to Mr. J***'s anxiety disorders and risk of self-harm, particularly the risk of falling, the respondent installed two functional cameras in the apartment of his represented person in February 2024. These are located in the entrance area and the living room and capture the care staff entering and leaving the apartment, as well as performing the care service. The cameras process audio and video material. The recording area is as follows (format not 1:1 adopted):

[Note from the editor: The photographs (Figures 1 and 2) from Mr. J***'s apartment, originally presented here as graphic files, have been removed for pseudonymization reasons.]

Assessment of Evidence: The findings made are based on the statements of the respondent in his submission and the attached and depicted photographic exhibits, the hearing of the complainant on December 5, 2024, and the credible statements of Michaela E*** in the witness hearing on January 13, 2025.

3. Based on traces in the snow, he installed another camera in the garden. The complainant was neither captured by the camera when entering nor leaving, nor while performing her work. The recording area is as follows (format not 1:1 adopted):

[Note from the editor: The photograph (Figure 3) from Mr. J***'s garden, originally presented here as a graphic file, has been removed for pseudonymization reasons.]

Assessment of Evidence: The findings made are based on the statements of the respondent in his submission and the attached and depicted photographic exhibits and the hearing of the complainant on December 5, 2024.

4. The respondent informed the witness Michaela E***, the complainant's then-supervisor,

during the care visit that the cameras in the living and entrance areas were decoys and only the camera in the garden was active.

[Note from the editor: The excerpt from an email (Figure 4) originally presented here as a graphic file cannot be pseudonymized with reasonable effort and has therefore been removed.]

Assessment of Evidence: The findings made are based on the submissions of the complainant, the email correspondence presented by her and depicted here from her supervisor and the staff of the G*** relief organization, the credible statements of the complainant in the hearing on December 5, 2024, and the credible statements of Michaela E*** in the witness hearing on January 13, 2025, which coincide with those of the complainant.

5. Witness Michaela E*** verbally communicated the information about the cameras during the staff meeting to the employees of the G*** relief organization. The G*** relief organization communicated to the respondent, as well as to the other employees, that they should cover the cameras for safety reasons when entering Mr. J***'s apartment for care services. Afterwards, the caregivers were to uncover the cameras again. There was a suspicion that they were not decoys but functional cameras. The complainant sometimes forgot to cover the cameras while performing her care service.

[Note from the editor: The excerpt from an email correspondence (Figures 5 and 6) originally presented here as graphic files cannot be pseudonymized with reasonable effort and has therefore been removed.]

Assessment of Evidence: The findings made are based on the submissions of the complainant, the email correspondence presented by her and depicted here from her supervisor and the staff of the G*** relief organization, the credible statements of the complainant in the hearing on December 5, 2024, and the credible statements of Michaela E*** in the witness hearing on January 13, 2025.

6. The respondent was never asked for consent regarding the cameras. She never agreed to be recorded, nor did the other employees of the G*** relief organization.

[Note from the editor: The excerpt from an email (unnamed figure) originally presented here as a graphic file cannot be pseudonymized with reasonable effort and has therefore been removed.]

Assessment of Evidence: The findings made are based on the submissions of the complainant, the email correspondence presented by her and depicted here from her supervisor and the staff of the G*** relief organization, the credible statements of the complainant in the hearing on December 5, 2024, and the credible statements of Michaela E*** in the witness hearing on January 13, 2025.

6. The respondent confronted the complainant on March 13, 2024, with a video recording of her. This video was recorded with a camera in the living room. The recording shows the complainant asking Mr. J*** to sign a document.

Assessment of Evidence: The findings are based on the consistent statements of the complainant and the respondent. The findings regarding the facts presented in the recording are based on the statements of the respondent and the video that the respondent submitted to the Data Protection Authority during the hearing on December 5, 2024.

D. From a legal perspective, it follows:

1. On the right to confidentiality:

According to § 1 para. 1 DSG, everyone has the right to the confidentiality of their personal data, provided there is a legitimate interest in doing so. The existence of such an interest is excluded if data is not accessible to a confidentiality claim due to its general availability or its lack of traceability to the affected individual.

The legal definitions and principles of the GDPR are to be used for the interpretation of the right to confidentiality (cf. § 4 para. 1 DSG and the decision of the DSB dated October 31, 2018, GZ DSB-D123.076/0003-DSB/2018). According to Art. 4 No. 1 GDPR, personal data is any information

relating to an identified or identifiable natural person. According to Art. 4 No. 2 GDPR, processing is any operation performed on personal data, whether or not by automated means, such as the collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, deletion, or destruction.

2. On the distribution of roles:

The determination of the data protection roles is crucial for the complaint procedure according to § 24 DSG and Art. 77 para. 1 GDPR, as it determines who is responsible for compliance with the respective data protection regulations, how the affected person can exercise their rights, and ultimately against whom the data protection complaint must be directed (respondent).

According to Art. 4 No. 7 GDPR, the natural or legal person, authority, institution, or other body that determines the purposes and means of processing personal data is the controller. The essential criterion is the decision-making component. The role of the controller thus arises primarily from the fact that a specific entity has decided to process personal data for its own purposes. The "purpose" describes an expected outcome, while the "means" define how the expected outcome is to be achieved (cf. the EDSA Guidelines of September 2, 2020, 07/2020 on the concept of the controller and processor, Rz 15 ff).

The respondent decided on the purpose of the data processing in question, namely the monitoring and subsequently the protection of Mr. J***, of whom he is the legal representative. He also decided on the means, namely the installation of video cameras. The respondent is therefore the controller according to Art. 4 No. 7 GDPR.

3. On the camera in the garden:

The camera in the garden captures, as established, only the exterior area of the ward's apartment. The camera does not capture the entrance area, which is why the comings and goings of the complainant are not recorded. The caregiving service itself is performed inside the apartment, which means that it cannot be assumed that the complainant was captured by this camera while performing her duties as a home helper. The complainant has also never claimed to have been recorded by this camera in the garden. Therefore, the scope of § 1 para. 1 DSG regarding the camera in the garden is not applicable, as the information does not relate to the complainant and thus cannot be classified as personal data. It was therefore decided accordingly, and the complaint on this point was dismissed.

4. On the cameras in the living and reception rooms:

In the matter at hand, the respondent records both video and audio with the cameras, thus capturing the appearance, all actions, and the spoken words of the complainant. Therefore, the scope of § 1 para. 1 DSG is applicable, as the information relates to the complainant and thus qualifies as personal data according to Art. 4 No. 1 GDPR. The respondent's action, namely the processing of image and sound, is to be regarded as processing according to Art. 4 No. 2 GDPR.

Restrictions on the right to confidentiality are permissible according to § 1 para. 2 DSG if personal data is used in the vital interest of the affected person, if the affected person has given their consent (or in GDPR terminology: permission), if there is a qualified legal basis for the use, or if the use is justified by overriding legitimate interests of a third party.

**The data processing in question does not lie in the vital interest of the complainant, and there is neither consent nor a qualified legal basis. At this point, it should be noted for the sake of completeness that the fundamental right to confidentiality under § 1 para. 2 DSG also provides for "legitimate interests of third parties" as a legal basis for processing. However, unlike under Art. 6 para. 1 lit. f GDPR, it must be considered that § 1 para. 2 DSG requires not an equality but a predominance of the interests of third parties for the permissibility of processing. The scheme for the balancing of interests is, however, also transferable to the case of § 1 para. 2 DSG. Accordingly, processing on the legal basis of "legitimate interests" is permissible under three cumulative conditions (cf. Art. 29 Data Protection Working Party, Opinion 06/2014 on the concept of legitimate interest of the data controller according to Article 7 of Directive 95/46/EC, WP 217, 844/14/EN, p. 43 f, according to which implemented protective measures to prevent or mitigate inappropriate consequences for the data subject must be duly considered as a factor in the context of the balancing of interests):

i. The pursuit of a legitimate interest by the controller or the third party or parties to whom the data is

disclosed,

- ii. The necessity of processing the personal data to achieve the legitimate interest, and
- iii. No predominance of the fundamental rights and freedoms of the data subject over the perceived legitimate interest (cf. the judgment of the CJEU of July 4, 2023, C-252/21 para. 106).

The respondent explains that the installation of the cameras serves to protect Mr. J***. He is the legal representative of Mr. J*** and explains in his submission the risk of self-harm posed by the represented person, particularly the risk of falling. The protection of vital interests of another natural person is to be considered a legitimate interest, especially in light of Art. 6 para. 1 lit. d GDPR.

However, the data processing is designed to be (permanently) ongoing. The principle of data minimization under Art. 5 para. 1 lit. c GDPR is directly linked to purpose limitation and establishes three cumulative elements of the factual basis: appropriateness, relevance, and limitation to what is necessary. Recital 39 additionally states that personal data may only be processed if the purpose of processing cannot be reasonably achieved by other means. This principle is intended to ensure that the processing of personal data is reduced to an unavoidable minimum (Jahnel, Commentary on the General Data Protection Regulation Art. 5 GDPR, as of 12.1.2020, rdb.at). In an overall consideration, the principle of data minimization requires a minimization of the affected persons as well as a limitation of the data stored for each affected person.

However, the recording of the entire living space, continuously, was not necessary to pursue the legitimate interest. During the presence of the nursing staff, these present individuals are able to monitor and ensure the health status and general well-being of Mr. J***. The respondent could have monitored the health and psychological condition of Mr. J*** in another way - namely, for a limited time. An examination of the predominance of the fundamental rights and freedoms of the data subject over the perceived legitimate interest is unnecessary. Even if the complainant - as he states - had ordered the covering of the cameras, there is still a lack of necessity, and a violation of the principle of data minimization exists, as the complainant is recorded when uncovering and covering, and the sound continues to be recorded.

It was therefore decided accordingly, and the complaint regarding the cameras in the living room and the anteroom was upheld.

5. Regarding the performance order:

The Data Protection Authority has the authority to issue remedial measures under Art. 58 para. 2 lit. d GDPR, allowing it to instruct a controller to change or carry out processing operations in a specific manner and within a specific timeframe. Based on the aforementioned provision, the respondent was therefore instructed ex officio to change the operation of the camera in question.

As established, the complainant violates the right to confidentiality by operating the cameras in the living room and the anteroom. The respondent argues that the image and sound processing is justified to protect the legitimate interests of third parties, namely the health status and general well-being of his ward. This cannot be followed.

In the present case, there is certainly the possibility to track the presence and absence of the caregivers. The continuous monitoring of the apartment is not necessary to achieve the purpose and therefore contradicts the principle of data minimization according to Art. 5 para. 1 lit. c GDPR.

The manner in which the first respondent implements the performance order in point 3 is left to him. The Data Protection Authority has issued a temporal restriction that no recordings shall be made by Camera 1, Camera 2, Camera 3, and Camera 4 during the time of the nursing service, or that the cameras shall be taken out of operation.**

set. Outside of the care service - and thus outside the presence of other affected individuals - it is the responsibility of the complainant to take preventive measures to protect their care recipient.

Merely covering the cameras is not an adequate measure to safeguard the data protection rights of the care staff, as they are still continuously recorded through audio processing and are captured through image processing until the cameras are covered and after they are uncovered. Furthermore, such a measure places the burden of safeguarding their rights on the caregivers as affected individuals, while the complainant, as the responsible party for ensuring compliance with the GDPR, must take appropriate action.

The respondent is required to provide the data protection authority with evidence of the restriction of

processing in accordance with Art. 58 para. 1 lit. a GDPR. A period of two weeks seems reasonable to implement the changes, which do not involve significant technical effort, and to submit the corresponding documentation to the data protection authority.